

CHAPTER 28

FIGHT TO THE FINISH

'We've won the case.'

On 2 May 1996, the Chief Judicial Magistrate (CJM), Ernakulam accepted the CBI report discharging all the accused and proclaiming the ISRO espionage case as false. That marked the happy ending of the investigation and the beginning of a bitter legal battle.

Kerala was in the process of electing its tenth legislative assembly. The CPI (M), which had mentioned the case in its election manifesto to checkmate the Congress, was on its way to power. Leader of the opposition V S Achuthanandan had set the tone in March 1996 by filing a petition in the Kerala high court, seeking a judicial inquiry. The high court dismissed this petition on 27 May 1996.

The CBI report had sent shivers down the spine of the investigating officers as it mentioned that the agency would be sending two separate confidential reports to the union government and the Kerala Government. Kerala officers Siby Mathews, Joshua and inspector S Vijayan knew well they were in the dock.

On 7 May, inspector Vijayan filed a criminal review petition in the Kerala High Court against the CJM's order. The officers knew their political masters were changing, as the CPI (M) was riding the crest of an anti-Congress wave in Kerala. On 20 May, the CPI (M)-led Left Democratic Front replaced the Antony government, with E K Nayanar as the Chief Minister.